

STATE OF NEW YORK

5436--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the labor law, in relation to preventing discrimination and increasing awareness of menopause and perimenopause

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 3 of section 296 of the executive law, as amended by chapter 369 of the laws of 2015, is amended to
2 read as follows:

3 (a) It shall be an unlawful discriminatory practice for an employer,
4 licensing agency, employment agency or labor organization to refuse to
5 provide reasonable accommodations to the known disabilities, ~~[or]~~ preg-
6 nancy-related conditions, or menstrual-related or menopausal-related
7 conditions of an employee, prospective employee or member in connection
8 with a job or occupation sought or held or participation in a training
9 program.

10 § 2. The labor law is amended by adding a new section 201-j to read as
11 follows:

12 § 201-j. Informational materials relating to the rights of employees
13 for menstrual-related and menopausal-related conditions. Every employer
14 shall provide each employee an informational pamphlet on any regulations
15 promulgated pursuant to section two hundred ninety-six of the executive
16 law relating to the rights of employees for menstrual-related and meno-
17 pausal-related conditions, including the duty of such employer to
18 provide reasonable accommodations. Such pamphlet shall be prepared by
19 the New York state division of human rights and include resources for
20 employees if employees feel that such employees have been discriminated
21 against.

22 § 3. This act shall take effect immediately; provided, however, that
23 section two of this act shall take effect on the ninetieth day after it
24 shall have become a law.
25

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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